

STANDARD CONTRACTUAL CLAUSES

These Standard Contractual Clauses ("**SCC's**") are entered into the date these SCC's were accepted by the Vendor in the RWS Vendor Management System ("**Effective Date**"), between RWS Group Limited, with its registered address at Europa House, Chiltern Park, Chiltern Hill, Chalfont St Peter, SL9 9FG, United Kingdom, on behalf of itself and Affiliates listed in Schedule 1 (collectively, "RWS"), and Vendor as identified in the RWS Vendor Management System ("Vendor") (Individually a "Party" and collectively the "Parties").

WHEREAS Vendor is located in a non EU/EEA Country;

WHEREAS Vendor will provide Services to RWS as more fully defined in the Terms and Conditions for Vendors and the applicable Order Form between RWS and Vendor;

WHEREAS Vendor may receive personal data when performing the Services;

WHEREAS these SCC's create a framework to enable the RWS entities listed in Schedule 1 below to provide personal data to the Vendor and for the Vendor to be authorised to process the personal data provided; and

WHEREAS the parties have agreed these SCC can be signed electronically and further agree that the electronic version of the signatures, whether within this document or separately stored, is valid evidence of agreement.

NOW, THEREFORE, in consideration of the above recitals and of the mutual agreements contained herein and RWS and Vendor hereby mutually agree to execute and comply with the provisions of the Annex to the Commission Implementing Decision (EU) 2021/915 of 4 June 2021, on standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council:

1. Adoption.

When applying these SCC's, the data protection framework set out by the EU General Data Protection Regulation (EU) 2016/679 (GDPR) will apply.

2. Definitions:

"Data Controller" means an organisation which determines the purposes and means of the processing of personal data.

"Data Processor" means an organisation which processes personal data on behalf of a data controller.

"Data Exporter" means the party transferring personal data out of the European Union.

"Data Importer" means the party receiving personal data transferred out of the European Union.

3. Applicable Modules. These clauses comprise four modules, only the modules listed below will apply to the parties:

- a) **Module 1 Controller to Controller:** will apply when RWS process the personal data as a Data Controller. Then acting as Data Exporter transfers personal data to Vendor, acting as a Data Importer, which will also be a Data Controller of the personal data transferred. An example of a situation when this Module will apply is in respect of RWS' staff data which is provided to the Vendor for the purposes of the business relationship between the parties.
- b) **Module 3 Processor to Processor:** will apply when RWS processes the personal data as a Data Processor on behalf of a third-party Data Controller. Then acting as a Data Exporter will transfer the personal data to Vendor. Vendor acting as a Data Importer will be a sub processor of the personal data transferred.

4. Exercise of Options

4.1 In Clause 9, for Module Three only:

- a. Engagement of third parties/sub-contractors Vendors:
 - i. Only companies providing agency translation services are authorised to engage third-party sub processors. The authorisation will appear in the RWS Terms and Conditions for Vendors or the applicable Order Form between RWS and Vendor and sub-clause b. below.
 - ii. Individual Vendors are not authorised to engage sub-processors.
- b. In Clause 9a (use of sub-processors), Option 2 (general written authorisation) will apply, and the Data Importer will: (i) provide a current list of agreed sub-processors; and (ii) provide prior notice of any sub-processor changes in accordance with any notice period specified for sub-processor changes in the Terms and Conditions for Vendors or, if no such period is specified, Data Importer will provide thirty (30) days' prior notice of any sub-processor changes.

SECTION I

Clause 1

Purpose and scope

- (a) The purpose of these standard contractual clauses is to ensure compliance with the requirements of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation)¹ for the transfer of personal data to a third country.

¹ Where the data exporter is a processor subject to Regulation (EU) 2016/679 acting on behalf of a Union institution or body as controller, reliance on these Clauses when engaging another processor (sub-processing) not subject to Regulation (EU) 2016/679 also ensures compliance with Article 29(4) of Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC (OJ L 295 of 21.11.2018, p. 39), to the extent these Clauses and the data protection obligations as set out in the contract or

- (b) The Parties:
- (i) the natural or legal person(s), public authority/ies, agency/ies or other body/ies (hereinafter “entity/ies”) transferring the personal data, as listed in Annex I.A. (hereinafter each “data exporter”), and
 - (ii) the entity/ies in a third country receiving the personal data from the data exporter, directly or indirectly via another entity also Party to these Clauses, as listed in Annex I.A. (hereinafter each “data importer”)
- have agreed to these standard contractual clauses (hereinafter: “Clauses”).
- (c) These Clauses apply with respect to the transfer of personal data as specified in Annex I.B.
- (d) The Appendix to these Clauses containing the Annexes referred to therein forms an integral part of these Clauses.

Clause 2

Effect and invariability of the Clauses

- (a) These Clauses set out appropriate safeguards, including enforceable data subject rights and effective legal remedies, pursuant to Article 46(1) and Article 46 (2)(c) of Regulation (EU) 2016/679 and, with respect to data transfers from controllers to processors and/or processors to processors, standard contractual clauses pursuant to Article 28(7) of Regulation (EU) 2016/679, provided they are not modified, except to select the appropriate Module(s) or to add or update information in the Appendix. This does not prevent the Parties from including the standard contractual clauses laid down in these Clauses in a wider contract and/or to add other clauses or additional safeguards, provided that they do not contradict, directly or indirectly, these Clauses or prejudice the fundamental rights or freedoms of data subjects.
- (b) These Clauses are without prejudice to obligations to which the data exporter is subject by virtue of Regulation (EU) 2016/679.

Clause 3

Third-party beneficiaries

- (a) Data subjects may invoke and enforce these Clauses, as third-party beneficiaries, against the data exporter and/or data importer, with the following exceptions:
- (i) Clause 1, Clause 2, Clause 3, Clause 6, Clause 7;
 - (ii) Clause 8 - Module One: Clause 8.5 (e) and Clause 8.9(b); Module Two: Clause 8.1(b), 8.9(a), (c), (d) and (e); Module Three: Clause 8.1(a), (c) and (d) and Clause 8.9(a), (c), (d), (e), (f) and (g); Module Four: Clause 8.1 (b) and Clause 8.3(b);

other legal act between the controller and the processor pursuant to Article 29(3) of Regulation (EU) 2018/1725 are aligned. This will in particular be the case where the controller and processor rely on the standard contractual clauses included in Decision [...].

- (iii) Clause 9 - Module Two: Clause 9(a), (c), (d) and (e); Module Three: Clause 9(a), (c), (d) and (e);
 - (iv) Clause 12 - Module One: Clause 12(a) and (d); Modules Two and Three: Clause 12(a), (d) and (f);
 - (v) Clause 13;
 - (vi) Clause 15.1(c), (d) and (e);
 - (vii) Clause 16(e);
 - (viii) Clause 18 - Modules One, Two and Three: Clause 18(a) and (b); Module Four: Clause 18.
- (b) Paragraph (a) is without prejudice to rights of data subjects under Regulation (EU) 2016/679.

Clause 4

Interpretation

- (a) Where these Clauses use terms that are defined in Regulation (EU) 2016/679, those terms shall have the same meaning as in that Regulation.
- (b) These Clauses shall be read and interpreted in the light of the provisions of Regulation (EU) 2016/679.
- (c) These Clauses shall not be interpreted in a way that conflicts with rights and obligations provided for in Regulation (EU) 2016/679.

Clause 5

Hierarchy

In the event of a contradiction between these Clauses and the provisions of related agreements between the Parties, existing at the time these Clauses are agreed or entered into thereafter, these Clauses shall prevail.

Clause 6

Description of the transfer(s)

The details of the transfer(s), and in particular the categories of personal data that are transferred and the purpose(s) for which they are transferred, are specified in Annex I.B.

Clause 7 - Optional

Docking clause

Deleted

SECTION II – OBLIGATIONS OF THE PARTIES

Clause 8

Data protection safeguards

The data exporter warrants that it has used reasonable efforts to determine that the data importer is able, through the implementation of appropriate technical and organisational measures, to satisfy its obligations under these Clauses.

MODULE ONE: Transfer controller to controller

8.1 Purpose limitation

The data importer shall process the personal data only for the specific purpose(s) of the transfer, as set out in Annex I.B. It may only process the personal data for another purpose:

- (i) where it has obtained the data subject's prior consent;
- (ii) where necessary for the establishment, exercise or defence of legal claims in the context of specific administrative, regulatory or judicial proceedings; or
- (iii) where necessary in order to protect the vital interests of the data subject or of another natural person.

8.2 Transparency

- (a) In order to enable data subjects to effectively exercise their rights pursuant to Clause 10, the data importer shall inform them, either directly or through the data exporter:
 - (i) of its identity and contact details;
 - (ii) of the categories of personal data processed;
 - (iii) of the right to obtain a copy of these Clauses;
 - (iv) where it intends to onward transfer the personal data to any third party/ies, of the recipient or categories of recipients (as appropriate with a view to providing meaningful information), the purpose of such onward transfer and the ground therefore pursuant to Clause 8.7.
- (b) Paragraph (a) shall not apply where the data subject already has the information, including when such information has already been provided by the data exporter, or providing the information proves impossible or would involve a disproportionate effort for the data importer. In the latter case, the data importer shall, to the extent possible, make the information publicly available.
- (c) On request, the Parties shall make a copy of these Clauses, including the Appendix as completed by them, available to the data subject free of charge. To the extent necessary to protect business secrets or other confidential information, including personal data, the Parties may redact part of the text of the Appendix prior to sharing a copy, but shall provide a meaningful summary where the data subject would otherwise not be able to understand its content or exercise his/her rights. On request, the Parties shall provide the

data subject with the reasons for the redactions, to the extent possible without revealing the redacted information.

- (d) Paragraphs (a) to (c) are without prejudice to the obligations of the data exporter under Articles 13 and 14 of Regulation (EU) 2016/679.

8.3 Accuracy and data minimisation

- (a) Each Party shall ensure that the personal data is accurate and, where necessary, kept up to date. The data importer shall take every reasonable step to ensure that personal data that is inaccurate, having regard to the purpose(s) of processing, is erased or rectified without delay.
- (b) If one of the Parties becomes aware that the personal data it has transferred or received is inaccurate, or has become outdated, it shall inform the other Party without undue delay.
- (c) The data importer shall ensure that the personal data is adequate, relevant and limited to what is necessary in relation to the purpose(s) of processing.

8.4 Storage limitation

The data importer shall retain the personal data for no longer than necessary for the purpose(s) for which it is processed. It shall put in place appropriate technical or organisational measures to ensure compliance with this obligation, including erasure or anonymisation² of the data and all back-ups at the end of the retention period.

8.5 Security of processing

- (a) The data importer and, during transmission, also the data exporter shall implement appropriate technical and organisational measures to ensure the security of the personal data, including protection against a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure or access (hereinafter “personal data breach”). In assessing the appropriate level of security, they shall take due account of the state of the art, the costs of implementation, the nature, scope, context and purpose(s) of processing and the risks involved in the processing for the data subject. The Parties shall in particular consider having recourse to encryption or pseudonymisation, including during transmission, where the purpose of processing can be fulfilled in that manner.
- (b) The Parties have agreed on the technical and organisational measures set out in Annex II. The data importer shall carry out regular checks to ensure that these measures continue to provide an appropriate level of security.

² This requires rendering the data anonymous in such a way that the individual is no longer identifiable by anyone, in line with recital 26 of Regulation (EU) 2016/679, and that this process is irreversible.

- (c) The data importer shall ensure that persons authorised to process the personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.
- (d) In the event of a personal data breach concerning personal data processed by the data importer under these Clauses, the data importer shall take appropriate measures to address the personal data breach, including measures to mitigate its possible adverse effects.
- (e) In case of a personal data breach that is likely to result in a risk to the rights and freedoms of natural persons, the data importer shall without undue delay notify both the data exporter and the competent supervisory authority pursuant to Clause 13. Such notification shall contain i) a description of the nature of the breach (including, where possible, categories and approximate number of data subjects and personal data records concerned), ii) its likely consequences, iii) the measures taken or proposed to address the breach, and iv) the details of a contact point from whom more information can be obtained. To the extent it is not possible for the data importer to provide all the information at the same time, it may do so in phases without undue further delay.
- (f) In case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the data importer shall also notify without undue delay the data subjects concerned of the personal data breach and its nature, if necessary in cooperation with the data exporter, together with the information referred to in paragraph (e), points ii) to iv), unless the data importer has implemented measures to significantly reduce the risk to the rights or freedoms of natural persons, or notification would involve disproportionate efforts. In the latter case, the data importer shall instead issue a public communication or take a similar measure to inform the public of the personal data breach.
- (g) The data importer shall document all relevant facts relating to the personal data breach, including its effects and any remedial action taken, and keep a record thereof.

8.6 Sensitive data

Where the transfer involves personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, or biometric data for the purpose of uniquely identifying a natural person, data concerning health or a person's sex life or sexual orientation, or data relating to criminal convictions or offences (hereinafter "sensitive data"), the data importer shall apply specific restrictions and/or additional safeguards adapted to the specific nature of the data and the risks involved. This may include restricting the personnel permitted to access the personal data, additional security measures (such as pseudonymisation) and/or additional restrictions with respect to further disclosure.

8.7 Onward transfers

The data importer shall not disclose the personal data to a third party located outside the European Union³ (in the same country as the data importer or in another third country, hereinafter “onward transfer”) unless the third party is or agrees to be bound by these Clauses, under the appropriate Module. Otherwise, an onward transfer by the data importer may only take place if:

- (i) it is to a country benefitting from an adequacy decision pursuant to Article 45 of Regulation (EU) 2016/679 that covers the onward transfer;
- (ii) the third party otherwise ensures appropriate safeguards pursuant to Articles 46 or 47 of Regulation (EU) 2016/679 with respect to the processing in question;
- (iii) the third party enters into a binding instrument with the data importer ensuring the same level of data protection as under these Clauses, and the data importer provides a copy of these safeguards to the data exporter;
- (iv) it is necessary for the establishment, exercise or defence of legal claims in the context of specific administrative, regulatory or judicial proceedings;
- (v) it is necessary in order to protect the vital interests of the data subject or of another natural person; or
- (vi) where none of the other conditions apply, the data importer has obtained the explicit consent of the data subject for an onward transfer in a specific situation, after having informed him/her of its purpose(s), the identity of the recipient and the possible risks of such transfer to him/her due to the lack of appropriate data protection safeguards. In this case, the data importer shall inform the data exporter and, at the request of the latter, shall transmit to it a copy of the information provided to the data subject.

Any onward transfer is subject to compliance by the data importer with all the other safeguards under these Clauses, in particular purpose limitation.

8.8 Processing under the authority of the data importer

The data importer shall ensure that any person acting under its authority, including a processor, processes the data only on its instructions.

8.9 Documentation and compliance

- (a) Each Party shall be able to demonstrate compliance with its obligations under these Clauses. In particular, the data importer shall keep appropriate documentation of the processing activities carried out under its responsibility.

³ The Agreement on the European Economic Area (EEA Agreement) provides for the extension of the European Union's internal market to the three EEA States Iceland, Liechtenstein and Norway. The Union data protection legislation, including Regulation (EU) 2016/679, is covered by the EEA Agreement and has been incorporated into Annex XI thereto. Therefore, any disclosure by the data importer to a third party located in the EEA does not qualify as an onward transfer for the purpose of these Clauses.

- (b) The data importer shall make such documentation available to the competent supervisory authority on request.

MODULE TWO: Transfer controller to processor

Not applicable

MODULE THREE: Transfer processor to processor

8.1 Instructions

- (a) The data exporter has informed the data importer that it acts as processor under the instructions of its controller(s), which the data exporter shall make available to the data importer prior to processing.
- (b) The data importer shall process the personal data only on documented instructions from the controller, as communicated to the data importer by the data exporter, and any additional documented instructions from the data exporter. Such additional instructions shall not conflict with the instructions from the controller. The controller or data exporter may give further documented instructions regarding the data processing throughout the duration of the contract.
- (c) The data importer shall immediately inform the data exporter if it is unable to follow those instructions. Where the data importer is unable to follow the instructions from the controller, the data exporter shall immediately notify the controller.
- (d) The data exporter warrants that it has imposed the same data protection obligations on the data importer as set out in the contract or other legal act under Union or Member State law between the controller and the data exporter⁴.

8.2 Purpose limitation

The data importer shall process the personal data only for the specific purpose(s) of the transfer, as set out in Annex I.B., unless on further instructions from the controller, as communicated to the data importer by the data exporter, or from the data exporter.

8.3 Transparency

On request, the data exporter shall make a copy of these Clauses, including the Appendix as completed by the Parties, available to the data subject free of charge. To the extent necessary to protect business secrets or other confidential information, including personal data, the data exporter may redact part of the text of the Appendix prior to sharing a copy, but shall provide a meaningful summary where the data subject would otherwise not be able to understand its

⁴ See Article 28(4) of Regulation (EU) 2016/679 and, where the controller is an EU institution or body, Article 29(4) of Regulation (EU) 2018/1725.

content or exercise his/her rights. On request, the Parties shall provide the data subject with the reasons for the redactions, to the extent possible without revealing the redacted information.

8.4 Accuracy

If the data importer becomes aware that the personal data it has received is inaccurate, or has become outdated, it shall inform the data exporter without undue delay. In this case, the data importer shall cooperate with the data exporter to rectify or erase the data.

8.5 Duration of processing and erasure or return of data

Processing by the data importer shall only take place for the duration specified in Annex I.B. After the end of the provision of the processing services, the data importer shall, at the choice of the data exporter, delete all personal data processed on behalf of the controller and certify to the data exporter that it has done so, or return to the data exporter all personal data processed on its behalf and delete existing copies. Until the data is deleted or returned, the data importer shall continue to ensure compliance with these Clauses. In case of local laws applicable to the data importer that prohibit return or deletion of the personal data, the data importer warrants that it will continue to ensure compliance with these Clauses and will only process it to the extent and for as long as required under that local law. This is without prejudice to Clause 14, in particular the requirement for the data importer under Clause 14(e) to notify the data exporter throughout the duration of the contract if it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under Clause 14(a).

8.6 Security of processing

- (a) The data importer and, during transmission, also the data exporter shall implement appropriate technical and organisational measures to ensure the security of the data, including protection against a breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure or access to that data (hereinafter “personal data breach”). In assessing the appropriate level of security, they shall take due account of the state of the art, the costs of implementation, the nature, scope, context and purpose(s) of processing and the risks involved in the processing for the data subject. The Parties shall in particular consider having recourse to encryption or pseudonymisation, including during transmission, where the purpose of processing can be fulfilled in that manner. In case of pseudonymisation, the additional information for attributing the personal data to a specific data subject shall, where possible, remain under the exclusive control of the data exporter or the controller. In complying with its obligations under this paragraph, the data importer shall at least implement the technical and organisational measures specified in Annex II. The data importer shall carry out regular checks to ensure that these measures continue to provide an appropriate level of security.
- (b) The data importer shall grant access to the data to members of its personnel only to the extent strictly necessary for the implementation, management and monitoring of the contract. It shall ensure that persons authorised to process the personal data have

committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

- (c) In the event of a personal data breach concerning personal data processed by the data importer under these Clauses, the data importer shall take appropriate measures to address the breach, including measures to mitigate its adverse effects. The data importer shall also notify, without undue delay, the data exporter and, where appropriate and feasible, the controller after having become aware of the breach. Such notification shall contain the details of a contact point where more information can be obtained, a description of the nature of the breach (including, where possible, categories and approximate number of data subjects and personal data records concerned), its likely consequences and the measures taken or proposed to address the data breach, including measures to mitigate its possible adverse effects. Where, and in so far as, it is not possible to provide all information at the same time, the initial notification shall contain the information then available and further information shall, as it becomes available, subsequently be provided without undue delay.
- (d) The data importer shall cooperate with and assist the data exporter to enable the data exporter to comply with its obligations under Regulation (EU) 2016/679, in particular to notify its controller so that the latter may in turn notify the competent supervisory authority and the affected data subjects, taking into account the nature of processing and the information available to the data importer.

8.7 Sensitive data

Where the transfer involves personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, or biometric data for the purpose of uniquely identifying a natural person, data concerning health or a person's sex life or sexual orientation, or data relating to criminal convictions and offences (hereinafter "sensitive data"), the data importer shall apply the specific restrictions and/or additional safeguards set out in Annex I.B.

8.8 Onward transfers

The data importer shall only disclose the personal data to a third party on documented instructions from the controller, as communicated to the data importer by the data exporter. In addition, the data may only be disclosed to a third party located outside the European Union⁵ (in the same country as the data importer or in another third country, hereinafter "onward transfer") if the third party is or agrees to be bound by these Clauses, under the appropriate Module, or if:

⁵ The Agreement on the European Economic Area (EEA Agreement) provides for the extension of the European Union's internal market to the three EEA States Iceland, Liechtenstein and Norway. The Union data protection legislation, including Regulation (EU) 2016/679, is covered by the EEA Agreement and has been incorporated into Annex XI thereto. Therefore, any disclosure by the data importer to a third party located in the EEA does not qualify as an onward transfer for the purposes of these Clauses.

- (i) the onward transfer is to a country benefitting from an adequacy decision pursuant to Article 45 of Regulation (EU) 2016/679 that covers the onward transfer;
- (ii) the third party otherwise ensures appropriate safeguards pursuant to Articles 46 or 47 of Regulation (EU) 2016/679;
- (iii) the onward transfer is necessary for the establishment, exercise or defence of legal claims in the context of specific administrative, regulatory or judicial proceedings;
or
- (iv) the onward transfer is necessary in order to protect the vital interests of the data subject or of another natural person.

Any onward transfer is subject to compliance by the data importer with all the other safeguards under these Clauses, in particular purpose limitation.

8.9 Documentation and compliance

- (a) The data importer shall promptly and adequately deal with enquiries from the data exporter or the controller that relate to the processing under these Clauses.
- (b) The Parties shall be able to demonstrate compliance with these Clauses. In particular, the data importer shall keep appropriate documentation on the processing activities carried out on behalf of the controller.
- (c) The data importer shall make all information necessary to demonstrate compliance with the obligations set out in these Clauses available to the data exporter, which shall provide it to the controller.
- (d) The data importer shall allow for and contribute to audits by the data exporter of the processing activities covered by these Clauses, at reasonable intervals or if there are indications of non-compliance. The same shall apply where the data exporter requests an audit on instructions of the controller. In deciding on an audit, the data exporter may take into account relevant certifications held by the data importer.
- (e) Where the audit is carried out on the instructions of the controller, the data exporter shall make the results available to the controller.
- (f) The data exporter may choose to conduct the audit by itself or mandate an independent auditor. Audits may include inspections at the premises or physical facilities of the data importer and shall, where appropriate, be carried out with reasonable notice.
- (g) The Parties shall make the information referred to in paragraphs (b) and (c), including the results of any audits, available to the competent supervisory authority on request.

MODULE FOUR: Transfer processor to controller

Not applicable

Clause 9

Use of sub-processors

MODULE TWO: Transfer controller to processor

Not applicable

MODULE THREE: Transfer processor to processor

- (a) GENERAL WRITTEN AUTHORISATION The data importer has the controller's general authorisation for the engagement of sub-processor(s) from an agreed list. The data importer shall specifically inform the controller in writing of any intended changes to that list through the addition or replacement of sub-processors at least [*Specify time period*] in advance, thereby giving the controller sufficient time to be able to object to such changes prior to the engagement of the sub-processor(s). The data importer shall provide the controller with the information necessary to enable the controller to exercise its right to object. The data importer shall inform the data exporter of the engagement of the sub-processor(s).
- (b) Where the data importer engages a sub-processor to carry out specific processing activities (on behalf of the controller), it shall do so by way of a written contract that provides for, in substance, the same data protection obligations as those binding the data importer under these Clauses, including in terms of third-party beneficiary rights for data subjects.⁶ The Parties agree that, by complying with this Clause, the data importer fulfils its obligations under Clause 8.8. The data importer shall ensure that the sub-processor complies with the obligations to which the data importer is subject pursuant to these Clauses.
- (c) The data importer shall provide, at the data exporter's or controller's request, a copy of such a sub-processor agreement and any subsequent amendments. To the extent necessary to protect business secrets or other confidential information, including personal data, the data importer may redact the text of the agreement prior to sharing a copy.
- (d) The data importer shall remain fully responsible to the data exporter for the performance of the sub-processor's obligations under its contract with the data importer. The data importer shall notify the data exporter of any failure by the sub-processor to fulfil its obligations under that contract.
- (e) The data importer shall agree a third-party beneficiary clause with the sub-processor whereby - in the event the data importer has factually disappeared, ceased to exist in law or has become insolvent - the data exporter shall have the right to terminate the sub-processor contract and to instruct the sub-processor to erase or return the personal data.

Clause 10

Data subject rights

⁶ This requirement may be satisfied by the sub-processor acceding to these Clauses under the appropriate Module, in accordance with Clause 7.

MODULE ONE: Transfer controller to controller

- (a) The data importer, where relevant with the assistance of the data exporter, shall deal with any enquiries and requests it receives from a data subject relating to the processing of his/her personal data and the exercise of his/her rights under these Clauses without undue delay and at the latest within one month of the receipt of the enquiry or request.⁷ The data importer shall take appropriate measures to facilitate such enquiries, requests and the exercise of data subject rights. Any information provided to the data subject shall be in an intelligible and easily accessible form, using clear and plain language.
- (b) In particular, upon request by the data subject the data importer shall, free of charge :
 - (i) provide confirmation to the data subject as to whether personal data concerning him/her is being processed and, where this is the case, a copy of the data relating to him/her and the information in Annex I; if personal data has been or will be onward transferred, provide information on recipients or categories of recipients (as appropriate with a view to providing meaningful information) to which the personal data has been or will be onward transferred, the purpose of such onward transfers and their ground pursuant to Clause 8.7; and provide information on the right to lodge a complaint with a supervisory authority in accordance with Clause 12(c)(i);
 - (ii) rectify inaccurate or incomplete data concerning the data subject;
 - (iii) erase personal data concerning the data subject if such data is being or has been processed in violation of any of these Clauses ensuring third-party beneficiary rights, or if the data subject withdraws the consent on which the processing is based.
- (c) Where the data importer processes the personal data for direct marketing purposes, it shall cease processing for such purposes if the data subject objects to it.
- (d) The data importer shall not make a decision based solely on the automated processing of the personal data transferred (hereinafter “automated decision”), which would produce legal effects concerning the data subject or similarly significantly affect him / her, unless with the explicit consent of the data subject or if authorised to do so under the laws of the country of destination, provided that such laws lays down suitable measures to safeguard the data subject’s rights and legitimate interests. In this case, the data importer shall, where necessary in cooperation with the data exporter:
 - (i) inform the data subject about the envisaged automated decision, the envisaged consequences and the logic involved; and
 - (ii) implement suitable safeguards, at least by enabling the data subject to contest the decision, express his/her point of view and obtain review by a human being.

⁷ That period may be extended by a maximum of two more months, to the extent necessary taking into account the complexity and number of requests. The data importer shall duly and promptly inform the data subject of any such extension.

- (e) Where requests from a data subject are excessive, in particular because of their repetitive character, the data importer may either charge a reasonable fee taking into account the administrative costs of granting the request or refuse to act on the request.
- (f) The data importer may refuse a data subject's request if such refusal is allowed under the laws of the country of destination and is necessary and proportionate in a democratic society to protect one of the objectives listed in Article 23(1) of Regulation (EU) 2016/679.
- (g) If the data importer intends to refuse a data subject's request, it shall inform the data subject of the reasons for the refusal and the possibility of lodging a complaint with the competent supervisory authority and/or seeking judicial redress.

MODULE TWO: Transfer controller to processor

Not applicable

MODULE THREE: Transfer processor to processor

- (a) The data importer shall promptly notify the data exporter and, where appropriate, the controller of any request it has received from a data subject, without responding to that request unless it has been authorised to do so by the controller.
- (b) The data importer shall assist, where appropriate in cooperation with the data exporter, the controller in fulfilling its obligations to respond to data subjects' requests for the exercise of their rights under Regulation (EU) 2016/679 or Regulation (EU) 2018/1725, as applicable. In this regard, the Parties shall set out in Annex II the appropriate technical and organisational measures, taking into account the nature of the processing, by which the assistance shall be provided, as well as the scope and the extent of the assistance required.
- (c) In fulfilling its obligations under paragraphs (a) and (b), the data importer shall comply with the instructions from the controller, as communicated by the data exporter.

MODULE FOUR: Transfer processor to controller

Not applicable

Clause 11

Redress

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

- (a) In case of a dispute between a data subject and one of the Parties as regards compliance with these Clauses, that Party shall use its best efforts to resolve the issue amicably in a

timely fashion. The Parties shall keep each other informed about such disputes and, where appropriate, cooperate in resolving them.

- (b) Where the data subject invokes a third-party beneficiary right pursuant to Clause 3, the data importer shall accept the decision of the data subject to:
 - (i) lodge a complaint with the supervisory authority in the Member State of his/her habitual residence or place of work, or the competent supervisory authority pursuant to Clause 13;
 - (ii) refer the dispute to the competent courts within the meaning of Clause 18.
- (c) The Parties accept that the data subject may be represented by a not-for-profit body, organisation or association under the conditions set out in Article 80(1) of Regulation (EU) 2016/679.
- (d) The data importer shall abide by a decision that is binding under the applicable EU or Member State law.
- (e) The data importer agrees that the choice made by the data subject will not prejudice his/her substantive and procedural rights to seek remedies in accordance with applicable laws.

Clause 12

Liability

MODULE ONE: Transfer controller to controller

- (a) Each Party shall be liable to the other Party/ies for any damages it causes the other Party/ies by any breach of these Clauses.
- (b) Each Party shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages that the Party causes the data subject by breaching the third-party beneficiary rights under these Clauses. This is without prejudice to the liability of the data exporter under Regulation (EU) 2016/679.
- (c) Where more than one Party is responsible for any damage caused to the data subject as a result of a breach of these Clauses, all responsible Parties shall be jointly and severally liable and the data subject is entitled to bring an action in court against any of these Parties.
- (d) The Parties agree that if one Party is held liable under paragraph (c), it shall be entitled to claim back from the other Party/ies that part of the compensation corresponding to its / their responsibility for the damage.
- (e) The data importer may not invoke the conduct of a processor or sub-processor to avoid its own liability.

MODULE THREE: Transfer processor to processor

- (a) Each Party shall be liable to the other Party/ies for any damages it causes the other Party/ies by any breach of these Clauses.
- (b) The data importer shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data importer or its sub-processor causes the data subject by breaching the third-party beneficiary rights under these Clauses.
- (c) Notwithstanding paragraph (b), the data exporter shall be liable to the data subject, and the data subject shall be entitled to receive compensation, for any material or non-material damages the data exporter or the data importer (or its sub-processor) causes the data subject by breaching the third-party beneficiary rights under these Clauses. This is without prejudice to the liability of the data exporter and, where the data exporter is a processor acting on behalf of a controller, to the liability of the controller under Regulation (EU) 2016/679 or Regulation (EU) 2018/1725, as applicable.
- (d) The Parties agree that if the data exporter is held liable under paragraph (c) for damages caused by the data importer (or its sub-processor), it shall be entitled to claim back from the data importer that part of the compensation corresponding to the data importer's responsibility for the damage.
- (e) Where more than one Party is responsible for any damage caused to the data subject as a result of a breach of these Clauses, all responsible Parties shall be jointly and severally liable and the data subject is entitled to bring an action in court against any of these Parties.
- (f) The Parties agree that if one Party is held liable under paragraph (e), it shall be entitled to claim back from the other Party/ies that part of the compensation corresponding to its / their responsibility for the damage.
- (g) The data importer may not invoke the conduct of a sub-processor to avoid its own liability.

Clause 13

Supervision

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

- (a) [Where the data exporter is established in an EU Member State:] The supervisory authority with responsibility for ensuring compliance by the data exporter with Regulation (EU) 2016/679 as regards the data transfer, as indicated in Annex I.C, shall act as competent supervisory authority.

[Where the data exporter is not established in an EU Member State, but falls within the territorial scope of application of Regulation (EU) 2016/679 in accordance with its Article 3(2) and has appointed a representative pursuant to Article 27(1) of Regulation (EU) 2016/679:] The supervisory authority of the Member State in which the

representative within the meaning of Article 27(1) of Regulation (EU) 2016/679 is established, as indicated in Annex I.C, shall act as competent supervisory authority.

[Where the data exporter is not established in an EU Member State, but falls within the territorial scope of application of Regulation (EU) 2016/679 in accordance with its Article 3(2) without however having to appoint a representative pursuant to Article 27(2) of Regulation (EU) 2016/679:] The supervisory authority of one of the Member States in which the data subjects whose personal data is transferred under these Clauses in relation to the offering of goods or services to them, or whose behaviour is monitored, are located, as indicated in Annex I.C, shall act as competent supervisory authority.

- (b) The data importer agrees to submit itself to the jurisdiction of and cooperate with the competent supervisory authority in any procedures aimed at ensuring compliance with these Clauses. In particular, the data importer agrees to respond to enquiries, submit to audits and comply with the measures adopted by the supervisory authority, including remedial and compensatory measures. It shall provide the supervisory authority with written confirmation that the necessary actions have been taken.

SECTION III – LOCAL LAWS AND OBLIGATIONS IN CASE OF ACCESS BY PUBLIC AUTHORITIES

Clause 14

Local laws and practices affecting compliance with the Clauses

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

- (a) The Parties warrant that they have no reason to believe that the laws and practices in the third country of destination applicable to the processing of the personal data by the data importer, including any requirements to disclose personal data or measures authorising access by public authorities, prevent the data importer from fulfilling its obligations under these Clauses. This is based on the understanding that laws and practices that respect the essence of the fundamental rights and freedoms and do not exceed what is necessary and proportionate in a democratic society to safeguard one of the objectives listed in Article 23(1) of Regulation (EU) 2016/679, are not in contradiction with these Clauses.
- (b) The Parties declare that in providing the warranty in paragraph (a), they have taken due account in particular of the following elements:
 - (i) the specific circumstances of the transfer, including the length of the processing chain, the number of actors involved and the transmission channels used; intended onward transfers; the type of recipient; the purpose of processing; the categories

and format of the transferred personal data; the economic sector in which the transfer occurs; the storage location of the data transferred;

- (ii) the laws and practices of the third country of destination– including those requiring the disclosure of data to public authorities or authorising access by such authorities – relevant in light of the specific circumstances of the transfer, and the applicable limitations and safeguards⁸;
 - (iii) any relevant contractual, technical or organisational safeguards put in place to supplement the safeguards under these Clauses, including measures applied during transmission and to the processing of the personal data in the country of destination.
- (c) The data importer warrants that, in carrying out the assessment under paragraph (b), it has made its best efforts to provide the data exporter with relevant information and agrees that it will continue to cooperate with the data exporter in ensuring compliance with these Clauses.
 - (d) The Parties agree to document the assessment under paragraph (b) and make it available to the competent supervisory authority on request.
 - (e) The data importer agrees to notify the data exporter promptly if, after having agreed to these Clauses and for the duration of the contract, it has reason to believe that it is or has become subject to laws or practices not in line with the requirements under paragraph (a), including following a change in the laws of the third country or a measure (such as a disclosure request) indicating an application of such laws in practice that is not in line with the requirements in paragraph (a). [For Module Three: The data exporter shall forward the notification to the controller.]
 - (f) Following a notification pursuant to paragraph (e), or if the data exporter otherwise has reason to believe that the data importer can no longer fulfil its obligations under these Clauses, the data exporter shall promptly identify appropriate measures (e.g. technical or organisational measures to ensure security and confidentiality) to be adopted by the data exporter and/or data importer to address the situation [for Module Three: , if appropriate in consultation with the controller]. The data exporter shall suspend the data transfer if it considers that no appropriate safeguards for such transfer can be ensured, or if instructed by [for Module Three: the controller or] the competent supervisory authority to do so. In this case, the data exporter shall be entitled to terminate the

⁸ As regards the impact of such laws and practices on compliance with these Clauses, different elements may be considered as part of an overall assessment. Such elements may include relevant and documented practical experience with prior instances of requests for disclosure from public authorities, or the absence of such requests, covering a sufficiently representative time-frame. This refers in particular to internal records or other documentation, drawn up on a continuous basis in accordance with due diligence and certified at senior management level, provided that this information can be lawfully shared with third parties. Where this practical experience is relied upon to conclude that the data importer will not be prevented from complying with these Clauses, it needs to be supported by other relevant, objective elements, and it is for the Parties to consider carefully whether these elements together carry sufficient weight, in terms of their reliability and representativeness, to support this conclusion. In particular, the Parties have to take into account whether their practical experience is corroborated and not contradicted by publicly available or otherwise accessible, reliable information on the existence or absence of requests within the same sector and/or the application of the law in practice, such as case law and reports by independent oversight bodies.

contract, insofar as it concerns the processing of personal data under these Clauses. If the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise. Where the contract is terminated pursuant to this Clause, Clause 16(d) and (e) shall apply.

Clause 15

Obligations of the data importer in case of access by public authorities

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

15.1 Notification

- (a) The data importer agrees to notify the data exporter and, where possible, the data subject promptly (if necessary with the help of the data exporter) if it:
 - (i) receives a legally binding request from a public authority, including judicial authorities, under the laws of the country of destination for the disclosure of personal data transferred pursuant to these Clauses; such notification shall include information about the personal data requested, the requesting authority, the legal basis for the request and the response provided; or
 - (ii) becomes aware of any direct access by public authorities to personal data transferred pursuant to these Clauses in accordance with the laws of the country of destination; such notification shall include all information available to the importer.

[For Module Three: The data exporter shall forward the notification to the controller.]

- (b) If the data importer is prohibited from notifying the data exporter and/or the data subject under the laws of the country of destination, the data importer agrees to use its best efforts to obtain a waiver of the prohibition, with a view to communicating as much information as possible, as soon as possible. The data importer agrees to document its best efforts in order to be able to demonstrate them on request of the data exporter.
- (c) Where permissible under the laws of the country of destination, the data importer agrees to provide the data exporter, at regular intervals for the duration of the contract, with as much relevant information as possible on the requests received (in particular, number of requests, type of data requested, requesting authority/ies, whether requests have been challenged and the outcome of such challenges, etc.). [For Module Three: The data exporter shall forward the information to the controller.]
- (d) The data importer agrees to preserve the information pursuant to paragraphs (a) to (c) for the duration of the contract and make it available to the competent supervisory authority on request.

- (e) Paragraphs (a) to (c) are without prejudice to the obligation of the data importer pursuant to Clause 14(e) and Clause 16 to inform the data exporter promptly where it is unable to comply with these Clauses.

15.2 Review of legality and data minimisation

- (a) The data importer agrees to review the legality of the request for disclosure, in particular whether it remains within the powers granted to the requesting public authority, and to challenge the request if, after careful assessment, it concludes that there are reasonable grounds to consider that the request is unlawful under the laws of the country of destination, applicable obligations under international law and principles of international comity. The data importer shall, under the same conditions, pursue possibilities of appeal. When challenging a request, the data importer shall seek interim measures with a view to suspending the effects of the request until the competent judicial authority has decided on its merits. It shall not disclose the personal data requested until required to do so under the applicable procedural rules. These requirements are without prejudice to the obligations of the data importer under Clause 14(e).
- (b) The data importer agrees to document its legal assessment and any challenge to the request for disclosure and, to the extent permissible under the laws of the country of destination, make the documentation available to the data exporter. It shall also make it available to the competent supervisory authority on request. [For Module Three: The data exporter shall make the assessment available to the controller.]
- (c) The data importer agrees to provide the minimum amount of information permissible when responding to a request for disclosure, based on a reasonable interpretation of the request.

SECTION IV – FINAL PROVISIONS

Clause 16

Non-compliance with the Clauses and termination

- (d) The data importer shall promptly inform the data exporter if it is unable to comply with these Clauses, for whatever reason.
- (e) In the event that the data importer is in breach of these Clauses or unable to comply with these Clauses, the data exporter shall suspend the transfer of personal data to the data importer until compliance is again ensured or the contract is terminated. This is without prejudice to Clause 14(f).
- (f) The data exporter shall be entitled to terminate the contract, insofar as it concerns the processing of personal data under these Clauses, where:
 - (i) the data exporter has suspended the transfer of personal data to the data importer pursuant to paragraph (b) and compliance with these Clauses is not restored within a reasonable time and in any event within one month of suspension;

- (ii) the data importer is in substantial or persistent breach of these Clauses; or
- (iii) the data importer fails to comply with a binding decision of a competent court or supervisory authority regarding its obligations under these Clauses.

In these cases, it shall inform the competent supervisory authority [for Module Three: and the controller] of such non-compliance. Where the contract involves more than two Parties, the data exporter may exercise this right to termination only with respect to the relevant Party, unless the Parties have agreed otherwise.

- (g) Personal data that has been transferred prior to the termination of the contract pursuant to paragraph (c) shall at the choice of the data exporter immediately be returned to the data exporter or deleted in its entirety. The same shall apply to any copies of the data.
- (h) Either Party may revoke its agreement to be bound by these Clauses where (i) the European Commission adopts a decision pursuant to Article 45(3) of Regulation (EU) 2016/679 that covers the transfer of personal data to which these Clauses apply; or (ii) Regulation (EU) 2016/679 becomes part of the legal framework of the country to which the personal data is transferred. This is without prejudice to other obligations applying to the processing in question under Regulation (EU) 2016/679.

Clause 17

Governing law

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

These Clauses shall be governed by the law of the EU Member State in which the data exporter is established. Where such law does not allow for third-party beneficiary rights, they shall be governed by the law of another EU Member State that does allow for third-party beneficiary rights. The Parties agree that this shall be the law of France.

Clause 18

Choice of forum and jurisdiction

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

- (a) Any dispute arising from these Clauses shall be resolved by the courts of an EU Member State.
- (b) The Parties agree that those shall be the courts of the parties select the courts in the country in which the Data Exporter company is resident.
- (c) A data subject may also bring legal proceedings against the data exporter and/or data importer before the courts of the Member State in which he/she has his/her habitual residence.
- (d) The Parties agree to submit themselves to the jurisdiction of such courts.

APPENDIX

ANNEX I

A. LIST OF PARTIES

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

Data exporter(s): *[Identity and contact details of the data exporter(s) and, where applicable, of its/their data protection officer and/or representative in the European Union]*

1. Name: See introduction in page number 1.

Address: See introduction in page number 1.

Contact person's name, position and contact details: ...See Schedule 2

Activities relevant to the data transferred under these Clauses: See introduction in page number 1.

Signature and date: See introduction in page number 1.

Role (controller/processor): See introduction in page number 1.

2. ...

Data importer(s): *[Identity and contact details of the data importer(s), including any contact person with responsibility for data protection]*

1. Name: See introduction in page number 1.

Address: See introduction in page number 1.

Contact person's name, position and contact details: See introduction in page number 1.

Activities relevant to the data transferred under these Clauses: See introduction in page number 1.

Signature and date: See introduction in page number 1.

Role (controller/processor): See introduction in page number 1.

B. DESCRIPTION OF TRANSFER

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

Categories of data subjects whose personal data is transferred

The data subjects whose personal data is contained within materials provided by the Data Exporter (RWS) to the Data Importer (Vendor) to be processed by the Data Importer when delivering Services to the Data Exporter under RWS Terms and Conditions for Vendors and the applicable Order Form.

Categories of personal data transferred

The personal data which could be transferred to the Data Importer will vary but potentially is all types of personal data. It could include some or all of the following:

- Name
- Gender
- Age
- Date of birth
- Address (personal and business)
- Telephone numbers (personal and business)
- E-mail address (personal and business)
- Marital status
- Citizenship
- Languages spoken
- Veteran status
- IP address
- Username and passwords
- Employment identification numbers
- Government issued identification numbers
- Bank account details
- Credit card details
- Utility bills data
- HR records
- Salary
- References
- Photograph or video of person
- Location data from GPS tracking devices and telecommunication systems
- Personal interests derived from tracking use of internet web sites (cookies)
- Product and service preferences
- Personal or behavioural profiling

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

The Sensitive data which could be transferred to the Data Importer will vary but potentially is all types of Sensitive data. It could include some or all of the following:

- Racial or ethnic origin
- Political opinions

- Religious or philosophical beliefs
- Trade-union membership
- Genetic or Biometric data
- Health
- A person's sex life or sexual orientation
- Criminal convictions or offences

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).

Continuous for the duration of the relationship with the Data Importer.

Nature of the processing

Processing necessary for the Data Importer to provide the Services to the Data Exporter.

Purpose(s) of the data transfer and further processing

Data Exporter shall transfer personal data to the Data Importer, and the Data Importer shall process the personal data, as a Data Processor for the purpose of providing the Services to the Data Exporter and as a Data Controller for the purpose of the business relationship with the Data Exporter associated with the provision of the Services.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

Data Importer will retain transferred personal data until its return or deletion in accordance with the provisions of the RWS Terms and Conditions for Vendors.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

When transfers to sub-processors are permitted the subject matter, nature and duration of the processing shall be as specified in this document and the RWS Terms and Conditions for Vendors. (The RWS Terms and Conditions for Vendors and the applicable Order Form will state whether transfers to sub-processors are permitted).

C. COMPETENT SUPERVISORY AUTHORITY

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

Identify the competent supervisory authority/ies in accordance with Clause 13

Shall be the competent supervisory authority in the country in which the Data Exporter company is resident.

ANNEX II - TECHNICAL AND ORGANISATIONAL MEASURES INCLUDING TECHNICAL AND ORGANISATIONAL MEASURES TO ENSURE THE SECURITY OF THE DATA

MODULE ONE: Transfer controller to controller

MODULE THREE: Transfer processor to processor

The applicable technical and organisational measures are the security requirements set out in the RWS Terms and Conditions for Vendors between the Data Exporter and Data Importer which are incorporated here.

For transfers to (sub-) processors, also describe the specific technical and organisational measures to be taken by the (sub-) processor to be able to provide assistance to the controller and, for transfers from a processor to a sub-processor, to the data exporter

If the Data Importer is authorised to engage sub-processors then the applicable technical and organisational measures are the security requirements set out in the RWS Terms and Conditions for Vendors between the Data Exporter and Data Importer which the sub-processor must adopt.

ANNEX III – LIST OF SUB-PROCESSORS

MODULE TWO: Transfer controller to processor

MODULE THREE: Transfer processor to processor

This Annex is not applicable as no specific authorisation is granted.

SCHEDULE 1 – RWS AFFILIATES

Part A:

The RWS Group EU and EEA companies

For each company the Contact person's name, position and contact details are set out in Schedule 2

Each RWS Group company can have the role of: Controller and/or Processor

Fonto Group BV registered in the Dutch Chamber of Commerce 60730013 Address: Polakweg 7, 2288 GG Rijswijk
Lioness BV registered in the Dutch Chamber of Commerce 27163982 Address: Polakweg 7, 2288 GG Rijswijk
Moravia IT s.r.o. (Czech Republic) corporate identification No.: 032 51 853, registered in the Commercial Register maintained by the Regional Court in Brno, part C, entry 88437. Address: Vlněna 526/1, Trnitá, 602 00 Brno, Czech Republic
Moravia IT Hungary Kft. , corporate identification No.: 12268869-2-41, Hungary registration: Metropolitan Court of Budapest, Cg. 01-09-660799. Address: Horvát utca 14-24, 1027 Budapest, Hungary
Moravia IT s.r.o. (Ireland) , registered under No.: 908464 Address: 27-29 Orwell Road, Rathgar, Dublin 2, Ireland
Moravia IT s.r.o. (Poland) , registered under No.: KRS 0000862764, registered in the Register of entrepreneurs of the National Court Register maintained by the District Court for capital city of Warsaw in Warsaw, XII Commercial Division of the National Court Register under number KRS 0000862764. Address: Warsaw, ul. Krakowskie Przedmieście 13, 00-071 Warsaw
RWS Life Sciences International SA , Business Identification Number: CHE – 114.318.897 Address: Avenue Mon-Repos 14, 1005 Lausanne, Switzerland
SDL Belgium NV incorporated and registered with registered number 0475.302.077 in Belgium Address: Vital Decosterstraat 44, 3000 Leuven, Belgium
SDL CZ s.r.o incorporated and registered with registered number 25927094 in Czech Republic Address: Nerudova 198 Hradec Kralove 500 02 Czech Republic

SDL Denmark branch of SDL Sweden AB with registered number CVR-nr: 27618952 Address: Valkendorfsgrde 16, DK-1151 Copenhagen, Denmark
Software Development Language Solutions Hispania SL incorporated and registered with registered number CIF B-87556254 in Spain Address: Claudio Coello, 37, 28001 Madrid
SDL d.o.o Ljubljana incorporated and registered with registered number 91810850 in Slovenia Address: Stegne 21C, Ljubljana, Slovenia
SDL Finland branch of SDL Sweden AB with registered number 1906169-8 Address: Linnankatu 26 A, 20100 TURKU
SDL France SARL incorporated and registered with registered number SIRET 418 492 112 00028 in France Address: 36 avenue du Général de Gaulle, Paris 93170, France
SDL Global Solutions (Ireland) Ltd incorporated and registered with registered number 135925 in Ireland Address: c/o SDL Global Solutions Limited, La First Floor, Wilton Park House, Wilton Place, Dublin 2
SDL HELLAS EFARMOGES PLIROFORIKIS LIMITED incorporated and registered with registered number g # 262676 in Greece Address: Philippou 6, Metamorfosi, Athens 144 51, Greece
SDL Italia Srl Unipersonale incorporated and registered with registered number 839349 in Italy Address: Via Stradella 165, Roma 00124, Italy
SDL Language Weaver srl incorporated and registered with registered number Cluj Country Trade Register under no. J12/651/18.02.2008 in Romania Address: 24 Constanța Street, fl. 2-4, Cluj-Napoca, Romania, 400157, Romania
SDL Ltd. Zweigniederlassung für Deutschland with its registered offices at Balanstrasse Address: 49 81669 Munich Germany (HRB 125689) and Rosa-Luxemburg-Straße 27, 5./6. Obergeschoss, 04103 Leipzig, Germany
SDL Luxembourg SARL incorporated and registered with registered number B224670 in Luxembourg Address: 26 Boulevard Royal, Office no. 125, Regus Business Centre, 1st Floor, L2449

Luxembourg
SDL Magyarország Szolgáltató Kft incorporated and registered with registered number 01-09-692768 in Hungary Address: Árboc u. 6. III., Budapest, H-1702
SDL Media Manager B.V. incorporated and registered with registered number 27360123 in Netherlands Address: Herikerbergweg 78, 1101 CM Amsterdam, The Netherland
SDL Netherlands B.V. incorporated and registered with registered number 34167559 in Netherlands Address: Herikerbergweg 78, 1101 CM Amsterdam, The Netherlands
SDL Norway Branch of SDL Sweden AB registered as NUF (Norwegian branch of foreign enterprise) Address: 985 538 921 with address Rådhusgaten 30B 0151 OSLO Norway
SDL Poland Sp. z o.o. incorporated and registered with registered number KRS0000206383 in Poland Address: ul.Fordonska 246, 85 766 Bydgoszcz
SDL Portugal Unipessoal LDA incorporated and registered with registered number (Número de Identificação Fiscal) NIF 513734490 in Portugal Address: Rua Santo António Contumil, nº 130, Distrito: Porto Concelho: Porto Freguesia: Campanhã, 4350 289 PORTO
SDL Sweden AB incorporated and registered with registered number 556454-0259 in Sweden Address: Fatbursgatan, 1 Stockholm, S-118 28, Sweden
SDL Tridion AB incorporated and registered with registered number 556585-4063 in Sweden Address: Fatburgsgatan 1, 2tr, SE 118 28 Stockholm, Sweden
Trados GmbH incorporated and registered with registered number HRB 11673 in Germany Address: Waldburgstraße 2170563 Stuttgart
SDL Xopus B.V. incorporated and registered with registered number at the Dutch Chamber of Commerce: 27301795 in Netherlands

Address: Herikerbergweg 78, 1101 CM Amsterdam, The Netherlands

SDL Zagreb d.o.o. incorporated and registered with registered number 1586416 in Croatia

Address: Bednjanska 14/II, 10 000 Zagreb

Part B:

The RWS Group companies which are deemed “Adequate” by the EU

For each company the Contact person’s name, position and contact details are set out in Schedule 2

Each company can have the role of: Controller/Processor

Alpha Translations Canada Inc, ID number: 2165896

Address: 86 Boulder Boulevard, Suite 200, Stony Plain, Alberta, T7X 4K5, Canada

Alterian Technology Ltd incorporated and registered with registered number 03186704 in England

Address: New Globe Office, Vanwall Business Park, Vanwall Road, Maidenhead, SL6 4UB (from 11 Sep 2017)

Corporate Translations Inc. (UK) Ltd, company number: 08072632

Address: Europa House Chiltern Park, Chalfont St. Peter, Chiltern Hill, Chalfont St Peter, Buckinghamshire, SL9 9FG.

Horn & Uchida Patent Translations Ltd

Address: 6-11, Kitihama 2-Chome, Chuo-ku, Osaka-shi, Japan

KK RWS Group, company number:

Address:

Moravia IT s.r.o. (Sucursal Argentina), registered under No.: 711, Book 61, Volume (‘Tomo’) “B”, “Sociedades Constituidas en el Extranjero” (Foreign Companies Registry), Tax Identification No.: 30-70969072-4

Address: Av. Corrientes 327, 3 Piso, Buenos Aires, Argentina.

Moravia IT s.r.o. (Japan), registered under No.: 0111-03-006126 / 0111-03-006136

Address: Jimbocho Kita Tokyu Building 4F, 3-1-16 Kanda-Misakicho Chiyoda-ku, Tokyo 101-0061, Japan.

Moravia IT s.r.o. (UK), registered under No.: FC033564 (UK Establishment No. BR018650) Address: Europa House Chiltern Park, Chalfont St. Peter, Chiltern Hill, SL9 9FG, United Kingdom
RWS Group Limited, corporate identification No.: 01575193 Address: Europa House Chiltern Park, Chiltern Hill, Chalfont St Peter, Buckinghamshire, SL9 9FG.
RWS Holdings plc, corporate identification No.: 03002645 Address: Europa House Chiltern Park, Chiltern Hill, Chalfont St Peter, Buckinghamshire, SL9 9FG.
RWS Translations Ltd corporate identification No.: 01080416 Address: Europa House Chiltern Park, Chiltern Hill, Chalfont St Peter, Buckinghamshire, SL9 9FG.
SDL International (Canada) Ltd incorporated and registered in Canada Address: 1155 Metcalfe St, Suite 1200, Montreal, Quebec, Canada, H3B 2V6
SDL Japan KK incorporated and registered in Japan Address: Nakameguro GT Tower 4F, 2-1-1, Kamimeguro Meguro Tokyo, 153-0051, Japan
SDL Korea a branch of SDL Inc. Address: #1002, CityAir Tower,159-9, Samsungdong, Kangnamgu, Seoul 135-973 Korea
SDL Ltd incorporated and registered with registered number 02675207 in England Address: New Globe Office, Vanwall Business Park, Vanwall Road, Maidenhead, SL6 4UB (from 11 Sep 2017)
SDL Sheffield Limited incorporated and registered with registered number 2034398 in England Address: New Globe Office, Vanwall Business Park, Vanwall Road, Maidenhead, SL6 4UB (from 11 Sep 2017)
SDL Tridion KK incorporated and registered in Japan Address: Nakameguro GT Tower 4F, 2-1-1, Kamimeguro Meguro Tokyo, 153-0051, Japan
SDL Tridion Ltd incorporated and registered with registered number 3875520 in England Address: New Globe Office, Vanwall Business Park, Vanwall Road, Maidenhead, SL6 4UB (from 11 Sep 2017)

XyEnterprise Limited incorporated and registered with registered number 01750338 in England

Address: New Globe Office, Vanwall Business Park, Vanwall Road, Maidenhead, SL6 4UB

Part C:

The RWS Group Companies situated in Third Countries

For each company the Contact person's name, position and contact details are set out in Schedule 2

Each company can have the role of: Controller/Processor

Beijing RWS Science & Technology Information Consultancy Co Ltd company number:

Address: A601, 6th Floor, Building B-2, North Territory, Zhongguancun Dongsheng Science and Technology Park, No. 66 Xixiaokou Road, Haidian District, Beijing, the People's Republic of China

Corporate Translations, Inc., company number: 0278065

Address: 101 East River Drive, East Hartford, CT 06108, United States of America

Inovia Holdings Pty Ltd., company number: ACN 099 299 019 ABN 14099299019

Address: Level 12 Se 4, 45 Clarence Street, Sydney, NSW 2000 Australia

Lawyers and Merchants Translations Bureau Inc

Address: 11 Broadway Ste 466, New York NY 10004 USA

LUZ, Inc., company number: C2169848

Address: 555 Montgomery St., Suite 720, San Francisco, CA 94111, United States of America

Moravia India Private Limited, corporate identification No.: U72900MH2000PTC123528

Address: Unit 1319, 13 Floor, Building A1 , Rupa Solitaire Sector 1 Millenium Business Park Navi Mumbai Mumbai City MH 400710, Maharashtra, India.

Moravia IT, LLC, corporate identification No.: 87-0684816 / 47-2955576

Address: 223 E. Thousand Oaks Blvd, Suite 202, Thousand Oaks, CA 91360, USA, registered 10-3-2001, entity file 4992654-0160, State of Utah – Department of Commerce.

Moravia IT (Nanjing) Co., Ltd., corporate identification No.: 320100400042311

Address: 4F Zhongnan International Mansion, No 129 Zhongshan Road, Nanjing, 210004, Jiangsu, China

RWS Information US LLC, company number:

Address: 1209 Orange Street, Corporation Trust Center, Wilmington, DE 19801, United States of America
RWS Life Sciences Inc , company number: 6525133 Address: 1209 Orange Street, Corporation Trust Center, Wilmington, DE 19801, United States of America
RWS Moravia Colombia S.A.S. , corporate identification No.: 901373681-4, registered in the Cámara De Comercio De Medellín Para Antioquia, 4 - GRUPO III. Microempresas, No. 21-670048-12. Address: Carrera 43 A No. 1 50 Torre 2 Office 864, Medellín, Antioquia, Colombia
SDL do Brazil Global Solutions Ltda incorporated and registered in Brazil Address: Rua Barão do Triunfo 73, Rooms 63-67, Brooklin Paulista, São Paulo
SDL Chile SA incorporated and registered in Chile Address: Avenida Holanda 100 Oficina 1002, Providencia, Región Metropolitana, Santiago, 7510021 Chile
SDL Hong Kong Ltd incorporated and registered with registered number 2721175 in Hong Kong Address: Clarson Services Ltd (company secretary provider): 18th Floor Edinburgh Tower, The Landmark, 15 Queen's Road Central, Hong Kong
SDL Inc. (Thailand Branch) Address: Thanapoom Tower, 1550 New Petchburi Rd, Makkasan, Ratthawi, Bangkok 10400, Thailand
SDL Inc (USA) incorporated and registered in USA with registered number Delaware File # - 3662909 Address: 201 Edgewater Drive, Suite 225, Wakefield, MA 01880-1296, USA
SDL Limited (Lebanon Branch) Address: Wakim Building, 1st Floor, ATCL, Kaslik, Lebanon
SDL Ltd (Taiwan Branch) with address Address: 9F., No.178, Sec. 3, Sinyi Rd., Da-an District, Taipei City 10658, Taiwan
SDL Malaysia Branch of SDL Multi-Lingual Solutions (Singapore) Pte Ltd with Legal number 995720-P, a branch office of SDL Multi-Lingual Solutions (Singapore) Pte Ltd incorporated and registered in Singapore with its registered seat at 138, Cecil Street, #15-00 Cecil Court, Singapore 069538 Address: Offices 1526 & 1527 - 15th Floor West Block, Wisma Selangor Dredging, 142C

Jalan Ampang, Kuala Lumpur 50450 Malaysia
SDL Multilingual Solutions Private Ltd incorporated and registered in India Address: 1319, 13th Floor, Bldg A1, Rupa Solitaire, Sector 1, Millenium Business Park, Mahape, Navi Mumbai, 400 710, India
SDL Multi-Lingual Solutions (Singapore) Pte Ltd incorporated and registered in Singapore Address: 138, Cecil Street, #15-00 Cecil Court, Singapore 069538
"СДЛ Рус" LLC SDL Rus (Limited Liability Company "SDL Rus") incorporated and registered in Russia Address: ul Zastavskaya Street, 22, "A", 196084 St Petersburg, Russia.
SDL Software Technology (Shenzhen) Ltd incorporated and registered in China Address: Room 309, Floor 3,Resources-Tech-Building,Songping ShanRoad,High-tech Industrial Park,Nanshan District,Shenzhen City, Guandong, PRC and at Unit 2406-2409, Jingguang Center,No.1002, Yanhe North Road, Luohu District, Shenzhen 518002,PRC
SDL Technologies India Private Limited incorporated and registered in India Address: Building 4, Block A, 7th Floor, 77 Town Centre, Yemalur Main Road, Off Old Airport Road, Bangalore - 560 037
SDL TURKEY TRANSLATION SERVICES AND COMMERCE LIMITED COMPANY incorporated and registered in Turkey Address: Çamlıca Street Mühürdar Çıkmazı (cul de sac) No:2 Beylerbeyi Üsküdar 34676 İstanbul
LLC SDL Ukraine incorporated and registered in Ukraine Address: Business center SP Hall, Office 604, 28 A (letter G), Stepana Bandery avenue' Kiev, Ukraine
SDL Vietnam Ltd incorporated and registered in Vietnam Address: REE Tower, No. 9 Doan Van Bo street, ward 12, district 4, Ho Chi Minh city, Vietnam
SDL XyEnterprise LLC Fed ID: 04-3444196 Address: 201 Edgewater Drive, Wakefield, MA 01880-1296

SCHEDULE 2 – RWS CONTACT PERSON'S NAME, POSITION AND CONTACT DETAILS

As contact people can change the names and contact details are provided in this Schedule 2 which can be updated by RWS as required. The parties agree that amendments to this Schedule only do not require agreement of both parties.

Company Name	Contact Person	Position	Contact email
Alpha Translations Canada Inc.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Alterian Technology Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Beijing RWS Science & Technology Information Consultancy Co Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Corporate Translations Inc.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Corporate Translations Inc. (UK) Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Fonto Group B.V.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Horn & Uchida Patent Translations Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Inovia Holdings Pty Ltd.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
KK RWS Group	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Lawyers and Merchants Translations Bureau Inc.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Lioness B.V.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
LUZ, Inc.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT (Nanjing) Co., Ltd.	Group Data Privacy	Group Data Privacy	privacy@rws.com

	Officer	Officer	
Moravia IT Hungary Kft.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (Czech Republic)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (Ireland)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (Japan)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (Poland)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (Sucursal Argentina)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT s.r.o. (UK)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Moravia IT, LLC	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Group Limited	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Holdings plc	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Information Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Information US LLC	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Life Sciences Inc	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Life Sciences International SA	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Moravia Colombia S.A.S.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com

RWS Moravia India Private Limited	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
RWS Translations Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Belgium NV	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Chile SA	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL CZ s.r.o	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL d.o.o Ljubljana	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Denmark Branch of SDL Sweden AB	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL do Brazil Global Solutions Ltda.	Cristiane Salas	Admin Assistant	csalas@sdl.com
SDL Finland Branch of SDL Sweden AB	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL France SARL	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Global Solutions (Ireland) Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL HELLAS EFARMOGES PLIROFORIKIS LIMITED	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Hong Kong Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Inc. (Thailand Branch)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Inc. (USA)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL International (Canada) Inc.	Patrick Bradley-Campeau	Regional Director	pbcampeau@sdl.com

SDL Italia Srl Unipersonale	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Japan KK	Kikue Gainer	HR Manager	kgainer@sdl.com
SDL Korea a branch of SDL Inc.	SooYeon Choi	Operations Director	sychoi@sdl.com
SDL Language Weaver srl	Silviu Gaica	Health & Safety Specialist	sgaica@sdl.com
SDL Limited (Lebanon branch)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Limited (Taiwan Branch)	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Ltd.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Ltd. Zweigniederlassung für Deutschland	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Luxembourg SARL	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Magyarország Szolgáltató Kft	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Malaysia Branch of SDL Multi-Lingual Solutions (Singapore) Pte Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Media Manager B.V.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Multi-Lingual Solutions (Singapore) Pte Ltd	Eddy Chen	Language Delivery Director	edchen@sdl.com
SDL Multilingual Solutions Private Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Netherlands B.V.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Norway Branch of SDL Sweden AB	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com

SDL Poland Sp. z o.o.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Portugal Unipessoal LDA	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
"СДЛ Рус" LLC SDL Rus (Limited Liability Company "SDL Rus")	Nora Nazarova	Language Office Director	nnazarova@sdl.com
SDL Sheffield Limited	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Software Technology (Shenzhen) Co., Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Sweden AB	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Technologies India Private Limited	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Tridion AB	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Tridion KK	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Tridion Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL TURKEY TRANSLATION SERVICES AND COMMERCE LIMITED COMPANY	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Vietnam Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Xopus B.V.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL XyEnterprise LLC	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
SDL Zagreb d.o.o.	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Software Development Language Solutions	Group Data Privacy	Group Data Privacy	privacy@rws.com

Hispania SL	Officer	Officer	
LLC SDL Ukraine	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
Trados GmbH	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com
XyEnterprise Ltd	Group Data Privacy Officer	Group Data Privacy Officer	privacy@rws.com